

17.	23CV1216	BARCLAYS BANK DELAWARE VS. LESLIE A. SULLIVAN
MOTION FOR ENTRY OF JUDGMENT		

Plaintiff, Barclays Bank Delaware ("Plaintiff"), seeks to enter judgment pursuant to Defendant's default under settlement and release agreement (the "Settlement Agreement").

Pursuant to the Settlement Agreement, Defendant, Leslie A. Sullivan ("Defendant"), agreed to pay the total amount of \$9,338.15 in monthly installment payments in the amount of \$100.00 the first month and \$285.00 each month thereafter. Should Defendant default, Plaintiff may immediately file motion to seek entry of judgment for the balance due less credit for any payments received, plus court costs associated with filing and serving the action and any motion to obtain judgment. The Settlement Agreement provided that the Court would retain jurisdiction pursuant to Code of Civil Procedure § 664.6 to enforce the terms of the agreement.

Plaintiff alleges as of the date of its declaration, Defendant should have paid \$6,940.00; however, Plaintiff has only received \$6,188.60. This is comprised of the agreed account balance from settlement in the amount of \$12,049.25 less \$2,711.00 for payments made on old agreement and \$3,477.50 payments made on current agreement, totaling an outstanding principal balance of \$5,860.68. Plaintiff accordingly seeks to enter judgment in the amount of \$6,407.08, comprised of a principal balance of \$5,860.68 and \$546.40 for costs associated with filing and serving the Complaint and underlying motion.

Code of Civil Procedure § 664.6 provides that a Court may dismiss the case without prejudice and retain jurisdiction over the parties to enforce a settlement until performance in full of the terms of the settlement. Where a Court dismisses the case without prejudice pursuant to this section, a party may file a motion pertaining to the settlement if the terms are not performed. A Court need not vacate or set aside a prior dismissal before enforcing the settlement based upon a dismissal without prejudice pursuant to § 664.6.

TENTATIVE RULING #17:

PLAINTIFF'S MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER THE SETTLEMENT AND RELEASE AGREEMENT IS GRANTED. JUDGMENT SHALL BE ENTERED AGAINST DEFENANT IN THE AMOUNT OF \$6,407.08, COMPRISED OF THE OUTSTANDING BALANCE (\$5,860.68) AND COSTS (\$546.40).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY

August 28, 2026
Dept. 9
Civil Tentative Rulings

4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.